

**IN THE COURT OF THE CIVIL JUDGE SENIOR
DIVISION AT PANAJI-GOA**

SCS/52/2013/A

Comunidade of Bambolim

...Plaintiff

v/s

Pascoal Trinidad & Ors

...Defendant

**APPLICATION FOR
IMPLEADMENT AND LEAVE
TO DEFEND THE SUIT
UNDER ORDER 1 RULE 10 OF
THE CIVIL PROCEDURE
CODE**

MAY IT PLEASE YOUR HONOUR:-

The undersigned most humbly states and submits as under: -

1. The present Application is made under Order I Rule 10 seeking impleadment of M/s. PVM Associates as party to the present suit and further seeks leave of this Hon'ble Court to defend the present suit.
2. That vide Articles of Association dated 1st April, 2013 the suit property was transferred by Mr. Pascoal Trindade to the abovementioned Association of Persons viz. M/s. PVM Associates and thus the said M/s. PVM Associates is a necessary party to the present suit.

ATTACHED HEREWITH IS THE ARTICLES OF
ASSOCIATION DATED 01.04.2013

3. That pursuant to the transfer of the rights in respect of the suit properties by Mr. Pascoal Trindade in favour of M/s. PVM Associates, the legal heirs of Mr. Pascoal Trindade do not have any interest in defending the present suit and in fact have failed to appear before this Hon'ble Court for pas several hearings.
4. It is submitted that the outcome of the present suit has bearing on the undersigned and if leave to defend is not granted then tremendous and irreparable loss will be occasioned to undersigned.

5. The present application is made in the interest of justice.
6. It is therefore prayed that the present application be allowed and the Association of Persons viz. M/s. PVM Associates be impleaded as a party to the present suit and leave may be granted to defend the suit.

Date: - 20.01.2024

Place: -Panaji-Goa



(Mr. Vikram C. Shah)

M/s. PVM Associates

Identified by me:—

(Advocate Harshad Bhadbade)

